

AMENDED AND RESTATED CONSTRUCTION AGREEMENT

Nourish by Western Market Buildout
Collaborative Working Draft with Standard Operational Protections

This Amended and Restated Construction Agreement (“Agreement”) is entered into as of _____, 2026, by and between **Western Market Bloomfield LLC, Steve Selvaggio and Steven Selvaggio** (“Owner”) and **Raves Construction and Demolition Inc.** (“Contractor”) for the construction work relating to the **Nourish by Western Market** grocery buildout located at **42931 Woodward Ave., Bloomfield Township, MI 48304**.

1. Purpose and Collaborative Intent

The parties acknowledge that this Project requires coordination, communication, and cooperation among Owner, Contractor, subcontractors, specialty vendors, refrigeration contractors, equipment vendors, and governmental authorities. The intent of this Agreement is to keep the Project moving responsibly toward completion while clearly documenting normal commercial protections for both parties.

The parties agree to work in good faith as practical project partners to complete the Project efficiently, professionally, and with clear communication.

2. Contract Documents

The Contract Documents consist of this Agreement, architectural drawings prepared by Kalajian Architecture & Design LLC dated 05/06/2026, approved revisions, written clarifications, approved schedules, approved Change Orders, and mutually agreed written exhibits or attachments.

3. Scope of Work

Contractor shall furnish labor, supervision, tools, equipment, temporary utilities, protection, coordination, and services necessary to complete the work shown in the Contract Documents, except for Owner-supplied items and work expressly excluded or separately contracted.

Contractor shall supervise and coordinate subcontractors under its control and shall remain responsible for workmanship, construction sequencing, code compliance for its work, safety, and reasonable coordination with Owner’s separate vendors.

4. Owner-Supplied Items and Separate Vendor Scope

Owner-supplied or separately contracted items may include produce and bulk candy bins, shelving systems, check lanes, self-checkout systems, POS-related systems, decorative signage and graphics, food service equipment, specialty millwork, refrigeration systems, refrigerated cases, and specialty vendor scopes.

Contractor shall reasonably coordinate rough-ins, sequencing, access, and installation conditions for Owner-supplied items and separate vendors consistent with the Project schedule.

5. Refrigeration and Specialty Trade Coordination

Refrigeration work shall be handled under separate contract unless otherwise agreed in writing. Contractor shall reasonably coordinate utility readiness, openings, slab conditions, access, and trade sequencing with refrigeration and specialty vendors.

6. Contract Sum

The Contract Sum shall be **\$1,461,019.00**, subject to approved Change Orders, credits, deductions, allowances, or written amendments agreed by both parties.

7. Project Schedule and Substantial Completion Target

The parties acknowledge that timely completion is important for staffing, lender planning, equipment coordination, inspections, refrigeration startup, inventory planning, landlord coordination, and Owner's intended opening timeline.

The parties agree that the Project shall be managed toward a mutually agreed **Substantial Completion Target Date** of:

_____, 2026

This target date is intended to align expectations and support scheduling and coordination. It is not intended to create a liquidated damages provision or daily financial penalty. Contractor shall use commercially reasonable efforts to maintain forward progress and promptly communicate material conditions or delays that may affect completion.

8. Schedule Communication and Coordination

Contractor shall provide reasonable schedule updates and participate in regular construction coordination meetings. At minimum, Contractor shall provide: A baseline project schedule or milestone schedule; Periodic schedule updates as work progresses; A two-week lookahead during active construction; Prompt communication regarding critical path concerns or material delays. The parties agree to work cooperatively to identify and resolve issues early before they materially affect the Project.

9. Change Orders

No Change Order shall modify the Contract Sum or materially alter scope unless documented in writing and approved by Owner before the changed work proceeds whenever reasonably possible.

Each Change Order should identify scope, cost, schedule impact if any, and the reason for the change. Verbal approvals shall not be binding unless later confirmed in writing.

10. Payment Terms, Retainage, and Documentation

Contractor may submit monthly Applications for Payment for labor and materials incorporated into the work and properly stored materials intended for the Project.

Each Application for Payment shall include: Itemized progress billing detail; Sworn statements; Partial lien waivers from Contractor, subcontractors, and suppliers; Reasonable supporting documentation where requested. Owner

shall retain **10%** from progress payments as retainage until Final Completion, submission of final waivers, and closeout requirements are substantially satisfied.

Following Substantial Completion, issuance of Certificate of Occupancy (or temporary Certificate of Occupancy where applicable), and commencement of store operations, the parties may agree that a portion of the remaining Contract balance shall be paid over time in commercially reasonable monthly installments.

Any deferred balance arrangement, installment schedule, interest if applicable, and balloon payment terms shall be documented in a separate written addendum signed by both parties. Unless otherwise agreed in writing, any remaining deferred balance shall be satisfied within twelve (12) months following store opening.

11. Sworn Statements and Lien Waivers

The parties agree that sworn statements and lien waivers are standard operational protections and are a condition of progress and final payment.

Contractor shall provide: Sworn statements with each payment application; Partial lien waivers from Contractor, subcontractors, and suppliers with each progress payment; Final unconditional lien waivers from Contractor, subcontractors, and suppliers before final payment and release of retainage; Reasonable documentation showing subcontractors and suppliers have been paid from prior draws. Contractor shall promptly address and resolve any lien claim arising from Contractor's subcontractors, suppliers, or work performed under Contractor's scope.

12. Insurance Requirements

Contractor shall maintain insurance customary for a commercial construction project of this type, including: Commercial General Liability insurance; Workers Compensation insurance; Employer's Liability coverage; Commercial Automobile Liability insurance; Umbrella or Excess Liability coverage where applicable. Owner and Landlord shall be named as additional insureds where commercially available. Certificates of insurance shall be provided before commencement of work and upon reasonable request.

13. Subcontractor Responsibility

Contractor shall remain responsible for subcontractors under its control, including coordination, scheduling, workmanship, safety, payment administration, and code compliance applicable to Contractor's scope.

14. Jobsite Safety and Cleanliness

Contractor shall maintain commercially reasonable jobsite safety procedures, comply with applicable OSHA requirements, remove debris regularly, and reasonably protect completed work and Owner-supplied materials delivered to the Project.

15. Punch List and Final Completion

Owner may prepare a punch list before or at Substantial Completion. Contractor shall make commercially reasonable efforts to complete punch list items within thirty (30) days, subject to material availability, inspections, Owner-supplied items, and conditions outside Contractor's reasonable control.

16. Warranty

Contractor warrants labor and workmanship for one (1) year following Final Completion. Contractor shall reasonably and promptly correct defective work within Contractor's scope at no additional cost to Owner.

17. Good-Faith Resolution

If disputes or coordination issues arise, the parties shall first attempt to resolve the matter through direct discussion and good-faith cooperation. If unresolved, the parties agree to attempt mediation prior to litigation unless immediate legal action is required to protect payment rights, lien rights, insurance rights, or property interests.

Venue for unresolved disputes shall be Oakland County, Michigan.

18. Entire Agreement

This Agreement represents the parties' current understanding and supersedes prior proposals or discussions except as specifically incorporated herein. Amendments must be in writing and signed by both parties.

SIGNATURES

OWNER

Western Market Bloomfield LLC

By: _____

Name: _____

Date: _____

CONTRACTOR

Raves Construction and Demolition Inc.

By: _____

Name: _____

Date: _____

Working draft only. Parties are encouraged to have this Agreement reviewed by Michigan construction counsel prior to execution.